



Town and Country Planning (Amendment) Act 1977

1977 CHAPTER 29

An Act to amend the Town and Country Planning Act 1971 as respects stop notices and the provision of information to the Secretary of State and local authorities; and for connected purposes. [22nd July 1977]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Stop notices.
1971 c. 78.

1.—(1) For section 90 of the Town and Country Planning Act 1971 there shall be substituted the following section—

" Stop
notices.

90.—(1) Where in respect of any land the local planning authority—

- (a) have served an enforcement notice requiring a breach of planning control to be remedied ; but
- (b) consider it expedient to prevent, before the expiry of the period allowed for compliance with the notice, the carrying out of any activity which is, or is included in, a matter alleged by the notice to constitute the breach,

then, subject to the following provisions of this section, they may at any time before the notice takes

effect serve a further notice (in this Act referred to as a "stop notice") referring to, and having annexed to it a copy of, the enforcement notice and prohibiting the carrying out of that activity on the land, or on any part of it specified in the stop notice.

(2) A stop notice shall not prohibit—

(a) the use of any building as a dwellinghouse, or

(b) the use of land as the site for a caravan occupied by any person as his only or main residence (and for this purpose "caravan" has the same meaning as it has for the purposes of Part I of the Caravan Sites and Control of Development Act 1960), or

1960 c. 62.

(c) the taking of any steps specified in the enforcement notice as required to be taken in order to remedy the breach of planning control;

and where the period during which an activity has been carried out on land (whether continuously or otherwise) began more than twelve months earlier, a stop notice shall not prohibit the carrying out of that activity on that land unless it is, or is incidental to, building, engineering, mining or other operations or the deposit of refuse or waste materials.

(3) A stop notice shall not take effect (and so cannot be contravened) until such date as it may specify, being a date not earlier than three nor later than twenty-eight days from the day on which it is first served on any person.

(4) A stop notice shall cease to have effect when—

(a) the enforcement notice is withdrawn or quashed, or

(b) the period allowed for compliance with the enforcement notice expires, or

(c) notice of the withdrawal of the stop notice is first served under subsection (6) of this section;

and a stop notice shall also cease to have effect if or to the extent that the activities prohibited by it cease, on a variation of the enforcement notice, to be included in the matters alleged by the enforcement notice to constitute a breach of planning control.

(5) A stop notice may be served by the local planning authority on any person who appears to them to have an interest in the land or to be engaged in any activity prohibited by the notice ; and where a stop notice has been served in respect of any land, the authority may display there a notice (in this section referred to as a "site notice ") stating that a stop notice has been served and that any person contravening it may be prosecuted for an offence under this section, giving the date when the stop notice takes effect and indicating its requirements.

(6) The local planning authority may at any time withdraw a stop notice (without prejudice to their power to serve another) by serving notice to that effect on persons served with the stop notice and, if a site notice was displayed in respect of the stop notice, displaying a notice of the withdrawal in place of the site notice.

(7) If any person contravenes, or causes or permits the contravention of, a stop notice—

(a) after a site notice has been displayed, or

(b) if a site notice has not been displayed, more than two days after the stop notice has been served on him,

then, subject to subsection (8) of this section, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding £400, or on conviction on indictment to a fine ; and if the offence is continued after conviction he shall be guilty of a further offence and liable on summary conviction to a fine not exceeding £50 for each day on which the offence is continued, or on conviction on indictment to a fine.

(8) In proceedings for an offence under this section it shall be a defence for the accused to prove that the stop notice was not served on him and that he did not know, and could not reasonably have been expected to know, of its existence.

(9) A stop notice shall not be invalid by reason that the enforcement notice to which it relates was not served as required by section 87(4) of this Act if it is shown that the local planning authority took all such steps as were reasonably practicable to effect proper service.

(10) Any reference in this section to the period allowed for compliance with an enforcement notice

shall be construed in accordance with section 89(6) of this Act."

(2) This section shall have no effect in relation to stop notices first served before the commencement of this Act.

2.—(1) In relation to stop notices first served after the commencement of this Act, section 177 of the Town and Country Planning Act 1971 shall have effect with the following amendments.

Compensation for loss due to stop notice.
1971 c. 78.

(2) For subsection (1) there shall be substituted the following subsection—

"(1) A person who, when a stop notice under section 90 of this Act is first served, has an interest in or occupies the land to which the stop notice relates shall, in any of the circumstances mentioned in subsection (2) of this section, be entitled to be compensated by the local planning authority in respect of any loss or damage directly attributable to the prohibition contained in the notice (or, in a case within paragraph (b) of that subsection, so much of that prohibition as ceases to have effect)."

(3) In subsection (2) (circumstances in which right to compensation arises) for paragraphs (a) and (b) (enforcement notice quashed or varied on certain grounds) there shall be substituted the following paragraphs—

"(a) the enforcement notice is quashed on grounds other than those mentioned in paragraph (a) of section 88(1) of this Act ;

(b) the enforcement notice is varied, otherwise than on the grounds mentioned in that paragraph, so that the matters alleged to constitute a breach of planning control cease to include one or more of the activities prohibited by the stop notice ;".

(4) Subsection (3) and the words in subsection (5) from "or of any liability" onwards shall cease to have effect.

(5) After subsection (5) there shall be inserted the following subsection—

"(6) In the assessment of compensation under this section, account shall be taken of the extent (if any) to which the claimant's entitlement is attributable to his failure to comply with a notice under section 284 of this Act or to any mis-statement made by him in response to such a notice."

3.—(1) Section 284 of the Town and Country Planning Act 1971 (power to require information as to interests in land) shall be amended as follows.

Power to require information.

(2) In subsection (1) (which provides that the Secretary of State and local authorities may require certain persons to give information relating to interests in premises)—

(a) after the word “ may ” there shall be inserted the words “ by notice in writing ” ; and

(b) for the words from “ to state in writing ” onwards there shall be substituted the words “ to give in writing within twenty-one days after the date on which the notice is served, or such longer time as may be specified in the notice, or as the Secretary of State or (as the case may be) the local authority may allow, such information as to the matters mentioned in subsection (1A) of this section as may be so specified ”.

(3) After subsection (1) there shall be inserted the following subsection—

“ (1A) The matters referred to in subsection (1) of this section are—

(a) the nature of the interest in the premises of the person on whom the notice is served ;

(b) the name and address of any other person known to him as having an interest in the premises ;

(c) the purpose for which the premises are being used ;

(d) the time when that use began ;

(e) the name and address of any person known to the person on whom the notice is served as having used the premises for that purpose ;

(f) the time when any activities being carried out on the premises began.”.

(4) In subsection (2) (which makes it an offence for the person who has been required in pursuance of the section to give any information to fail to do so) for the words from “ having been ” to “ that information ” there shall be substituted the words “ without reasonable excuse, fails to comply with a notice served on him under subsection (1) of this section ”.

(5) In subsection (3) (which provides that a person who, having been so required to give any information, knowingly makes any mis-statement in respect thereof is guilty of an offence) for the words “ so required ” there shall be substituted the words “ required by a notice under subsection (1) of this section ”.

Short title,
commence-
ment and
extent.

4.—(1) This Act may be cited as the Town and Country Planning (Amendment) Act 1977.

(2) This Act shall come into force at the end of the period of one month beginning with the day on which it is passed.

(3) This Act extends to England and Wales only.